JOHN TRANOS MATUKUTIRE
versus
SHADRECK MUNATSI
and
FAITH MUNATSI
and
RATIDZAI MATUKUTIRE t/a GLOBAL VILLAGE

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
MUSHURE J
HARARE, 27-30 October 2025 & 20 April 2026

Ms F. Mahere for the plaintiff
A. Kutadzaushe & A. Masamha for the first and second defendants
No appearance for the third defendant

Civil Trial

MUSHURE J:

INTRODUCTION

[1] At the centre of the dispute in this matter is a stand, known as Stand Number 1239, Goodhope Township of Lot 16 of Goodhope Harare ('the stand').

[2] The matter has a long and chequered history that must be set out at length to give context to the current controversy. It is as follows: the plaintiff is the owner of a piece of land called Lot 16 of Goodhope, measuring 10.4707 hectares, held under Deed of Transfer 8809/01, dated 4 September 2001. He was given permission to subdivide the piece of land into several stands through permit number SD/WR/55/15. The stand in this matter is a result of that subdivision. It measures 2035 square metres.

[3] On 10 May 2018, the plaintiff and the first and second defendants, a couple based in the United Kingdom, duly represented by one Shuwiso Bandika by virtue of a special power of attorney, entered into an agreement of sale for the stand. The full purchase price for the stand was Fifty Thousand Eight Hundred and Seventy-Five United States Dollars (US$50 875.00), payable in instalments, with an initial deposit of Twenty-Five Thousand United States Dollars (US$25 000) payable in cash upon the signing of the agreement of sale by the parties; and the balance of Twenty-Five Eight Hundred and Seventy-Five United States Dollars (US$25 875) payable over a period of thirty-six months in monthly cash

instalments of Seven Hundred and Eighteen United States Dollars (US$718) with effect from 1 August 2018. It was a specific term of the agreement that all cash payments in terms of the agreement be paid directly in cash to the plaintiff.

[4] It is the plaintiff's claim that the first and second defendants failed to make the payments in terms of the agreement, and his notice to the two defendants to remedy the breach fell on deaf ears. On 4 May 2022, the plaintiff cancelled the agreement of sale. On 17 October 2022, the plaintiff filed a court application for confirmation of the cancellation of the agreement of sale, which was strenuously opposed by the first and second defendants. The relief sought by the plaintiff was granted by MAFUSIRE J (as he then was) on 21 July 2023 under judgment number HH-440-22. Aggrieved by the Judge's decision, the first and second defendants launched an appeal in the Supreme Court under case number SC477/23.

[5] On 25 October 2023, the Supreme Court allowed the appeal and referred the application for trial, with the plaintiff's affidavit standing as the summons and the first and second defendants' opposing papers standing as their appearance to defend. The Supreme Court further ordered that subsequent pleadings be in terms of the rules.

[6] On 9 November 2023, the first and second defendants filed their plea, in which they stated that Shuwiso Bandika paid the initial deposit of US$25 000 cash to the plaintiff on 10 May 2018 while they participated through the telephone. They stated, further, that the plaintiff then instructed Shuwiso Bandika to get the receipt from the third defendant, who is the plaintiff's estranged wife. Shuwiso Bandika was subsequently given the receipt on 1 June 2018. The first and second defendants contended that they paid the full purchase price to the third defendant on the plaintiff's instructions. They further contended that the plaintiff never opposed the building of a structure on the stand until 25 January 2022, when he purported to issue a notice to remedy a non-existent breach. They averred that they fell victim to the plaintiff's fraudulent and deceitful plan to swindle them of their hard-earned cash on the pretext that they failed to pay in terms of the contract of sale signed by the parties.

[7] The first and second defendants also made a counterclaim alleging a systematic criminal and fraudulent enterprise by the plaintiff wherein he would sell a stand and get full purchase price for it; turn around and claim that the full purchase price had not been paid directly to him but his wife thereby breaching the terms of the contract; cancel the agreement of sale and resale the stand to another unsuspecting purchaser. The first and second defendants made reference to four other cases in which the plaintiff had defrauded

purchasers in a like manner. They petitioned the court to order the plaintiff not to interfere with their occupation of the stand; and to sign all the necessary documents to effect transfer of the stand into their names, as well as to pay all statutory taxes required to be paid by him as the seller. In the event of the plaintiff not signing the necessary documents within seven days of the court's order, they prayed for the Sheriff of Zimbabwe or his deputy to be authorised to do so. They also prayed for costs on a higher scale.

[8] On 10 September 2025, the matter was referred to trial on the following issues: -

[9] On the main claim-

1. Whether or not the first and second defendants paid the full purchase price of US$50 875 to the plaintiff towards the purchase of stand number 1239 Good Hope Township of Lot 16 Good Hope Harare measuring 2035 square metres in terms of the agreement of sale between the parties.
2. Whether or not the plaintiff is entitled to cancel the agreement and the remedy being sought.

[10] On the counterclaim-

3. Whether or not the transfer of title with regards to stand number 1239 Good Hope Township of Lot 16 of Good Hope Harare measuring 2035 square metres should be made in favour of the first and second defendants.
4. Whether or not the plaintiff has engaged in a fraudulent and criminal enterprise with the aim of prejudicing the first and second defendants of the money they paid towards purchase of the property in question.
5. Whether or not punitive costs are proper in the circumstances and which party is entitled to be awarded them.

THE PLAINTIFF'S CASE

[11] The plaintiff was the sole witness. His evidence dealt with his ownership of Lot 16, the subsequent subdivision, and the terms of the agreement of sale he entered into with the first and second defendants. He related to various clauses of the agreement of sale, namely clause 2 which specifically stated that all cash payments in terms of the agreement were to be paid directly to him; and clause 13 which specified that the agreement constituted the whole contract between the parties, and any other representations or stipulations not included in the agreement were of no force and effect except if they were reduced to writing and signed by the parties. He also related to clause 18, in terms of which the first and second defendants were required to meet costs of drafting, typing, and executing the agreement; transfer fees, as well as electricity ('ZESA') installation fees.

[12] He specifically disputed the following actions that were attributed to him by the defendants- receiving any payment from the first and second defendants upon signing the

agreement of sale; participating in the initial transaction in which the agreement of sale was signed and US$25 000 cash was paid; engaging with the first and second defendants telephonically during that transaction; and directing that the instalments be paid to the third defendant.

[13] He testified that he was neither a director nor a shareholder in Global Village Stands, neither did such a company exist. His argument was that payment for the stand in *casu* was not made in terms of the agreement of sale and that he never received a portion of the purchase price. It was his evidence that the first and second defendants had not paid for the drafting, typing and execution of the agreement of sale, neither had they paid for the transfer fees and the electricity installation fees per the terms of the agreement of sale. He disputed that he had colluded with the third defendant to defraud the first and second defendants. He stated that criminal proceedings instituted against him had been unsuccessful.

[14] It was the plaintiff's evidence that the 25 January 2022 notice to the first and second defendants to remedy the breach had not been responded to, neither had his letter dated 4 May 2022 cancelling the agreement, prompting him to approach the court seeking confirmation of the cancellation.

[15] He testified that the subdivision contained 43 stands, and he assigned property negotiators to sell these stands on his behalf for 5% commission. The third defendant was a property negotiator who witnessed the signing of the agreement of sale in that capacity. He testified that upon discovering that she had diverted funds she had surreptitiously received from a number of buyers, he sought an explanation from her, but she was uncooperative. He had to enlist the services of law enforcement agents, a move which she interpreted as harassment. On their marital status, he stated that the third defendant had initiated divorce proceedings which she did not prosecute. It was his testimony that they were living in the same house, although estranged.

[16] Upon being cross-examined, the plaintiff explained that he had the agreement of sale printed at his conveyancer's office, following which he signed it and handed it to the third defendant who was in communication with the first and second defendants. The notation 'sold by Ratidzai Matukutire' on the agreement of sale was applicable to all the property negotiators, and it was this notation that entitled them to a commission. He disputed that the agreement of sale was signed in his presence at his house.

[17] He was asked about a Dominic, to which he responded that he did not know him, but he had received his email at a time when the said Dominic was fighting for commission with the third defendant. He was not one of his property negotiators. The plaintiff admitted that a billboard advertising the stands styled Global Village Project had been erected, but later on pulled down after protestations from ZB Bank, whose details had been included on the billboard. To him, the billboard was just an advertisement, not a tool for commercial transactions. He admitted that when the third defendant issued receipts in the name of Global Village, divorce proceedings between him and the third defendant had not commenced.

[18] When he was asked why it had taken him three and a half years to notify the first and second defendants of their purported breach of the terms of the agreement of sale, he referred to clause 12 of the agreement, which is to the effect that the rights of either party would not in any way be prejudiced by an extension of time of by other indulgence or concession which one party may grant to the other in terms of the performance of that party's obligations under the agreement. He testified that he had 43 properties, therefore it took him long to discover the fraud as the third defendant was hiding everything from him. It also took him a long time to discover that the first and second defendants had already started building without paying the purchase price. He stated that the distance between his place of residence and the stand is approximately 800m but the area is surrounded by other outbuildings.

[19] It was his evidence that this was a bank-funded project with strict guidelines. When purchasers paid in accordance with the agreements, they would be issued with receipts under Lomagundi Pharmacy. He insisted that Global Village Stands did not exist. He disputed the allegation that the arrangement between him and the third defendant was that he would only handle payments made through the bank while the third defendant handled all cash payments. He also disputed that he only thought about cancelling the agreement of sale because his marriage had hit the rocks, stating that about 37 purchasers were actually building on their stands.

[20] In re-examination, the plaintiff clarified that the email from Dominic did not relate to the stand in this matter. Dominic was never a party to the agreement of sale in this matter, and his email did not make any reference to any transacting entity by the name Global Village Stands. He clarified that, according to his 25 January 2022 notice, he had previously issued a notice on 13 May 2018. He stated that he had attempted to stop the

first and second defendants from building on the stand through negotiation, but they had reported him to the police for trespassing.

[21] The plaintiff's evidence was simple and straightforward.

THE FIRST AND SECOND DEFENDANTS' CASE

[22] Four witnesses gave evidence in support of the first and second defendants' case, namely Shuwiso Bandika, the third defendant, Tawira Madanhire, and lastly, the first defendant. I summarise the key aspects of their evidence below.

Shuwiso Bandika

[23] It is common cause that she is the one who made all the payments for the stand. Her evidence was key to prove if the first and second defendants had performed their obligations in terms of the agreement of sale. Yet, her evidence was clearly jumbled up, giving various versions of one event. To demonstrate this, I propose to set out her evidence on the material aspects of this matter in greater detail.

[24] She testified as follows: that the first defendant is her son-in-law and the second defendant, her daughter. She collectively referred to the first and second defendant as her children. By virtue of a special power of attorney made in her favour by the first and second defendants, she acted as their agent in the transaction. She was requested by the first and second defendants to go and view the 'Global Village' stands in Westgate. When she arrived, she requested to see the plaintiff or the third defendant. She met the third defendant, who told her that the plaintiff was not around since he had gone to work. The third defendant then took her to view the stands. The third defendant was accompanied by a certain man popularly known as Wasu, real name Oncemore Mhloyo, and a gardener to the plaintiff and the third defendant.

[25] She could not get the corner stand that she wanted. However, she identified a stand close to the corner and relayed the information to the first and second defendants. The first and second defendants then called her later that day and instructed her to pay the deposit for the stand amounting to US$25 000.

[26] When she went to make the payment, she was accompanied by her uncle, a Virimai Konjera. She knocked at the gate, Wasu attended to them and they were directed to enter. At that time, the plaintiff had just arrived. The third defendant was present. There were other people who were also present who had come to make payments. She was asked by the third defendant to get into the plaintiff's house after she had finished attending to the other people. At that time, the plaintiff had left the place and gone back to work. She met

the third defendant, who was in the company of a certain woman. There were four people in the room. Upon realising she had come to make a payment, the third defendant told her that she was going to call the plaintiff back.

[27] She testified that the plaintiff came back and got into the house whilst they were sitting in another 'dining' room. She was in the process of counting the money together with Virimai Konjera. The third defendant indicated to her that the plaintiff had given her the go-ahead to continue with the transaction. After counting the money, they handed it to the third defendant, who double-checked it and handed the full amount to the plaintiff.

[28] The third defendant indicated that she had been given the agreement of sale, which she brought from the plaintiff. She signed it. The first and second defendants called and asked if she had paid the deposit. She replied in the affirmative and proceeded to take a photograph of the signatures, which she sent to them. She stated that the plaintiff had been called by the first and second defendants, and she had also called him to advise him that she was going to bring the deposit, upon which the plaintiff had indicated that the third defendant was home.

[29] She testified that she was given a copy of the agreement of sale and a receipt under Global Village Stands, which she took home. She then stated that she was not given a receipt the same day. The third defendant had told her that she was supposed to do a double-check of the money with the plaintiff. The impression she created initially was that the plaintiff was not in the room when she was counting the money and handing it to the third defendant, although her understanding was that the plaintiff was within the house. During the course of her evidence, she then made an about turn and stated that as she was counting the money, she was giving it to the third defendant, who was handing it to the plaintiff. When she was asked to reconcile her two conflicting testimonies, she then stated that she was retracting her testimony that the third defendant said she wanted to double-check the money with the plaintiff because the plaintiff was there when the money was being counted.

[30] She testified that she was not given a receipt that day because the third defendant and the plaintiff indicated that they were in a rush, because they were not in a position to keep the money, so they wanted to take it to a safe for safekeeping. She then stated that it had been some time, so she could not recall whether she was given the receipt that very day. On being asked further, she stated that she had been given the receipt the same day she made the payment. She placed before the court a number of receipts which showed that

she made all the payments to the third defendant. All the receipts were under Global Village Stands.

[31] It was Shuwiso Bandika's evidence that the third defendant told her that Global Village was their company, which they were using to sell stands. Further, she stated that the money was supposed to be paid to the plaintiff and the third defendant. Whenever she wanted to make payments, she would call the plaintiff and the third defendant, after which she would go with the money. She then made an about turn and stated that she would call the plaintiff, who would tell her that the third defendant was available. She stated that the third defendant was the recipient of the money. She testified that she only met the plaintiff on the initial transaction. She testified that she saw him on this day. She expressed surprise that the plaintiff was adamant that he did not receive the money because he was given the money in her presence. She was shocked that he was saying he never received the money, yet the third defendant told her that whenever she paid the money, the plaintiff would come and collect the money for safekeeping.

[32] She testified that whenever she received the money, for fear of being robbed, she would call the plaintiff via the WhatsApp platform, telling him she was going to his place of residence without disclosing the reasons why she was going there. The plaintiff would instruct her to go and see the third defendant, who would be home. The first and second defendants would have also called him. After paying the full purchase price, she was instructed by the first and second defendants to purchase bricks and attend to City of Harare requirements, which she did. City of Harare approved the development of the stand, and council officials would come and inspect construction on the stand, which had gone up to deck level at the time the court processes commenced.

[33] During cross-examination, the witness confirmed that on her initial visit to view the stands, she had exchanged phone numbers with the third defendant but she did not get the plaintiff's number. She confirmed that she signed the agreement on a different date, approximately three days after viewing the stands. She testified that on the day of payment, she got into the house, and the third defendant was accompanied by her employee while Wasu stood by the door. She said Wasu indicated that the plaintiff was there. When she was reminded that in her evidence in chief, she had said the plaintiff was not there when she entered into the house, she insisted that the plaintiff was inside the house. She had to be asked three times to confirm whether the plaintiff was there or not, given that she had earlier testified that the third defendant had to call back the plaintiff, to

which she stated that he was at home, but she did not see him, although Wasu said he was in the house.

[34] When asked what the third defendant had said to her about the plaintiff's whereabouts, the witness stated that she had said he was coming soon for lunch. When asked how come if he had just left the house, she said that is what she was told by the third defendant. She stated that she had not questioned the third defendant's version, even though Wasu had told her that the plaintiff was in the house.

[35] She was asked who was present when she made the initial payment- she stated that it was the third defendant, the female employee, herself, and her uncle. She stated that there is a door that closes off the room they were in, so no one else could see what was happening as they were counting the money. She stated that after the third defendant was satisfied that the money was enough, she got the receipt and signed the agreement of sale.

[36] She confirmed reading the agreement of sale and understanding its terms. She stated that after signing the agreement of sale, the first defendant called her on the phone, and she had a private telephone conversation with him. She stated that none of the other parties nor the witnesses were on this call. She confirmed that she made all the payments to the third defendant. She conceded that the agreement of sale was specific that payments were to be made to the plaintiff and that the third defendant was not authorised to receive the payments. She conceded, further, that there was no agency agreement authorising the third defendant to receive the payments. She conceded that the relevant payments for the preparation of the agreement of sale, transfer, and electricity installation had not been made. She also conceded that when she was handed the agreement of sale, the plaintiff's portion had already been signed. She confirmed that the third defendant is the one who told them to proceed to develop the stand. She also confirmed that the plaintiff had sought an interdict against the first and second defendants because they had not been authorised to build on the stand. She was not aware that the plaintiff had been acquitted in the criminal matter instigated by the first and second defendants. She confirmed receiving and not responding to the 25 January 2022 notice to remedy the breach and the notice of cancellation of the agreement of sale.

[37] Upon being re-examined, she stated that the plaintiff had signed the agreement of sale on the same day she paid the deposit. When asked to reconcile this with her earlier statement during cross-examination that she had been handed an already signed agreement of sale by the third defendant, she explained that the third defendant brought the

agreement of sale, saying that the plaintiff had already signed the document. She was asked to clarify the payment details, to which she responded that she gave the money to the third defendant, who in turn gave it to the plaintiff. When asked if she was given a receipt the same day she paid the deposit, she stated that there was a problem with the electricity, so the receipt could not be printed that day.

[38] On being asked to clarify the details of her initial visit, who she spoke to, and how she got the directions, she said she knocked on the gate, and Wasu came, after which she asked if it was the Matukutire residence. She was asked how she got the directions to the stand. She said the first defendant sent her the telephone details for both the plaintiff and the third defendant.

[39] After re-examination, given that the plaintiff's presence during the deposit payment transaction had remained unclear, the court sought clarity from the witness if she saw the plaintiff on the day she made the deposit. The witness stated that she did not see him personally, but it was indicated that he was within the house. Mr *Kutadzaushe* then asked how she then saw him being given the money if she did not see the plaintiff, to which she said that when she gave the third defendant the money, she went to another room.

[40] There are aspects of Shuwiso Bandika's evidence that call for closer analysis.

[41] The first relates to the payment of the deposit. Her testimony surrounding the payment details was clearly mixed up. She said that she handed the deposit to the third defendant, who handed the money to the plaintiff in her presence. She then changed and said that after she handed the money to the third defendant, the third defendant went to another room, where the plaintiff purportedly was. The witness gave conflicting accounts of how the plaintiff is said to have received the money. Her last word on the issue was that the plaintiff was not in the room when the money was counted and handed over to the third defendant, who supposedly left the room to hand over the money to the plaintiff.

[42] The second relates to the plaintiff's presence at the house on the day in question. She testified that upon their arrival at the plaintiff's place of residence, Wasu told her that the plaintiff was in the house. Earlier on, she had testified that when she got to the house, the plaintiff was there, but he immediately left and had to be called by the third defendant after the third defendant realised she wanted to make a payment. She then testified that the third defendant told her that the plaintiff would be coming soon for lunch. It is not clear from her evidence whether the plaintiff was there initially and left but was told to come

back to attend to them, whether he was there all along, or whether he came back for lunch. On her final word, the witness did not see the plaintiff personally.

[43] The third relates to the signing of the agreement of sale. Initially, she testified that the agreement of sale was signed by the plaintiff in her presence. She then conceded that when she was given the agreement of sale, it was already signed by the plaintiff. Her evidence was contradictory.

[44] The fourth relates to the issuance of a receipt for the deposit. She testified that she obtained it the day she made the payment. She then said she received it later. When pressed further, she said she could not recall due to the lapse of time. In the instances when she said she got the receipt later, she also gave different reasons why she did not get the receipt immediately, as she had been instructed by the first and second defendants. She initially said the plaintiff and the third defendant were in such a rush to safeguard the money that they could not issue a receipt. She then said the receipt could not be printed because there was an electricity cut.

Ratidzai Matukutire

[45] She is also the third defendant in this matter, although she did not defend the suit. Her evidence was as follows: - she had been married to the plaintiff for forty years. The first and second defendants bought a stand from her and the plaintiff in 2018. They called her the marketing person who put all the adverts in the newspaper under Global Village. The project started as a family business, and initially, they were working in harmony.

[46] On the day Shuwiso Bandika came to pay the deposit, she had received a call from the first defendant alerting her that she was coming to make the payment. She, in turn, called the plaintiff and told him of the impending payment. The plaintiff authorised her to receive the money while he was coming from Chinhoyi, where he operates a pharmacy. When the plaintiff arrived, Shuwiso Bandika was still in the taxi she had come with, and the plaintiff invited Shuwiso Bandika and the other person she was with in the house. The plaintiff sat down at the table, and they verified the authenticity of each and every note using a note counting machine. After counting the money, the parties signed the agreement of sale. She testified that she would receive all cash for the sale of the stands, hand it over to the plaintiff, who would place it in a safe at Lomagundi Pharmacy.

[47] She stated that when she received the deposit from Shuwiso Bandika, the plaintiff was there while Shuwiso Bandika sat on the other side of the table. She did not give her a receipt then because there was a power cut. She testified that clause 2 of the agreement of

sale was satisfied because the plaintiff was physically there when the deposit was received. She stated that the first defendant would call the plaintiff and advise him that he intended to make a payment, upon which the plaintiff would instruct Shuwiso Bandika to see the third defendant. She testified that it would be a lie to say that the plaintiff was not there when she received the deposit because he was there, and that he did not sign the agreement of sale at the house, because he did. She testified, further, that she gave the first and second defendants copies of relevant documents so that they could commence to build. She did so with the plaintiff's blessing.

[48] She said it was a lie that the plaintiff could not see the ongoing construction at the stand, given its proximity to their own place of residence. She testified, further, that the plaintiff had gone behind her back and purportedly cancelled an agreement of sale in respect of a jointly owned stand. She stated that the purchase price had been used to beautify their own house.

[49] She stated that she was the person at the forefront to push the sales to cover a ZB bank mortgage because their house was encumbered. To prove that she and the plaintiff were jointly managing the project, she produced an email by a K. Msemburi, addressed to both the plaintiff and the third defendant following up on the servicing of the stands and another email by a Taddeaus Bako, cancelling his own agreement of sale, addressed to both of them as well. Referring to the email by Dominic, she stated that before she started selling the stands, the plaintiff had attempted to sell the stands through other agents, of which Dominic was one of them. Dominic wanted to maximise on the stands, and he approached her. She testified that Global Village was the name they used for the project.

[50] The witness stated that what pained her the most was the fact that the plaintiff connived with his legal representative, Mr Norman Mugiya, to deal with the stands fraudulently by reselling stands that had already been sold to other individuals. She pointed out four stands that had suffered that fate. She stated that it was within the plaintiff's discretion to either use the Lomagundi Pharmacy receipt or the Global Village receipt. She is the one who issued purchasers with Global Village receipts.

[51] During cross-examination, she stated that her phone number and that of her newly born grandson, were displayed on the Global Village billboard. She controlled both numbers. The plaintiff's number was not on the billboard. She was exclusively in charge of marketing the stands because she did not want double sales and in any event, the

plaintiff was always at the pharmacy. She confirmed that Shuwiso Bandika would speak to her, but she could not remember if she gave her the plaintiff's number.

[52] She insisted that when Shuwiso Bandika came, the plaintiff was not at home. He had left for work and Shuwiso Bandika had to wait for an hour until the plaintiff returned. She stated that Wasu would know if the plaintiff was not at home. She stated, further, that when the deposit money was counted, there were three parties in the room namely the plaintiff, Shuwiso Bandika and herself. In her evidence, Virimai Konjera only came in later to witness the signing of the agreement of sale. The female employee, now identified as Catherine, was not in the house at the time the money was counted. When it was put to her that Shuwiso Bandika had testified that Catherine was there when the money was counted, she stated that Shuwiso Bandika could be lying. She stated that Catherine would pass by but they would shoo her away.

[53] The witness stated that, contrary to Shuwiso Bandika's testimony that there were four people in the room when the money was counted, there were actually three people. She stated that it was a lie that Shuwiso Bandika never saw the plaintiff on the day. She stated that when the Shuwiso Bandika arrived at the house, the plaintiff was in Chinhoyi, and there is no way he could have been in the house. She also stated that it was a lie that the plaintiff was not there when the payment was made, because she received the money and handed it to the plaintiff. She stated that she could not issue her a receipt because of a power cut. She stated that she asked Shuwiso Bandika to sign the agreement of sale which she had printed. When she was asked how she could print the agreement of sale if there was no electricity, she stated that they had backup power. When asked to clarify, she changed posts and said Ms *Mahere* had misheard her. She then said the agreement was printed after power had been restored. She testified that power had been restored while Shuwiso Bandika was still around.

[54] When she was asked why she could not print the receipt that day, she responded that she could not print the receipt because there were large sums of money and there was a backlog. She was asked how she counted the money, and she stated that she had done so with the aid of a money counter. When asked if there was power to count the money but not print the receipt, she responded that the reason she could not print the receipt was because of the backlog. She was asked to reconcile her statement with her earlier testimony that she could not print the receipt because of a power outage, to which she said

she did not lie earlier because she initially could not print the receipt because of a power cut, then, when power was restored, she had a backlog.

[55] Her initial evidence was that the plaintiff had sent her the agreement of sale on the very day via email. When asked how she had received it and printed it when there was a power outage, she said power was restored later, so the plaintiff could have possibly sent it while he was driving to Harare. She insisted that Virimai Konjera only came in to witness the agreement of sale, not the payment. She disputed that when she gave Shuwiso Bandika the agreement of sale, the plaintiff had already signed it. She accepted that the receipts she issued indicated that she had received the payments, not that she and the plaintiff had received the payments. She also accepted that the agreement of sale did not say she was authorised to receive the money, but was quick to point out that that was the plaintiff's mistake because she would receive payments. She testified she did not know why the plaintiff did not register a company called Global Village. She conceded that it was just a marketing name that was on a billboard. She also conceded that she gave Shuwiso Bandika the relevant documents for City of Harare approvals. She said it was by consent that the deed of transfer for the piece of land be in the plaintiff's name only, although it was a matrimonial property.

[56] She admitted that the ZB Bank mortgage bond was in the plaintiff's name. She stated that she and the plaintiff operated as they did because they were married. From the witness' testimony, her thinking was that she could use the money in the manner she did because she was married to the plaintiff. She also took it that there was no need for any agency agreement or any power of attorney for her to collect monies specifically prescribed for the plaintiff in the agreement of sale. She testified that she had a verbal agreement with the plaintiff to take all the money. She admitted that she commenced divorce proceedings against the plaintiff, which were struck off the roll. She admitted that she was aware that the first and second defendants had instituted criminal proceedings against her and the plaintiff, although she was not aware that the plaintiff had been subsequently acquitted. She argued that there was no evidence of a joint criminal enterprise.

[57] On re-examination, she confirmed receiving payments from the first and second defendants on the strength of a verbal agreement between her and the plaintiff. She stated that she deliberated with the plaintiff until they came up with the name Global Village, and the plaintiff would pay for the advertisements. When asked to clarify the sequence of

events in this particular transaction, she stated that she called the plaintiff, whom she asked to print the agreement of sale in Chinhoyi, and he obliged. When she was asked to confirm who printed the agreement of sale, she then said she was the one who printed it. When she was asked to clarify the number of people who were in the dining room when the payment was made, she stated that there were three, and the fourth one had come in as Shuwiso Bandika's witness. Upon being asked to whom the payment was made, she said it was made to her and the plaintiff. She clarified that her female helper, Catherine, was not in the dining room at the moment. She stated that, contrary to clause 2 of the agreement of sale, all the cheque payments were made to the plaintiff while she received cash.

[58] Now, after Ratidzai Matukutire's evidence, the court had two diametrically different versions of the same event, which, unfortunately, were left unexplained. Her evidence added more confusion as to the plaintiff's actual whereabouts when Shuwiso Bandika arrived. For the first time, we were told that Shuwiso Bandika had to wait in the car for a whole hour pending the arrival of the plaintiff. She also added confusion as to when the agreement of sale was printed and signed by the plaintiff. Her version was that she printed the agreement of sale for all the parties to sign. Her other version was that she told the plaintiff to print the agreement of sale in Chinhoyi. On signing the agreement of sale, her version was that the agreement was signed in the plaintiff's presence. Shuwiso Bandika's evidence was that the agreement was already signed when it was handed to her to sign.

[59] Her evidence also diverged from that of Shuwiso Bandika as to Virimai Konjera's role in the whole transaction. Shuwiso Bandika stated that Virimai Konjera assisted her in counting the deposit money, which she was handing over to Ratidzai Matukutire in Catherine's presence. Ratidzai Matukutire stated that Virimai Konjera and Catherine were nowhere near the counting process, with Virimai Konjera only participating in witnessing the agreement of sale. When she was quizzed about these inconsistencies, she then tried to tailor her testimony by saying that Catherine would come into the room where she was counting the money with the plaintiff and Shuwiso Bandika, but she would shoo her away. She also made an attempt to change her evidence to match Shuwiso Bandika's evidence on the number of people who were in the dining room by stating that they were initially three but became four when Virimai Konjera joined them to witness the agreement. However, the two witnesses differed on the identities of the people who were in the dining room at the time of the counting of the money, with Shuwiso Bandika stating that it was

herself, Ratidzai Matukutire, Virimai Konjera, and Catherine, while Ratidzai Matukutire testified that it was just herself, the plaintiff, and Shuwiso Bandika.

[60] She was also evasive on the actual reason why she did not print the receipt acknowledging receipt of the deposit money on that day. She said there was a power cut. She then slipped up and stated that she printed the agreement of sale and counted the money using a money counter. When asked about electricity in relation to printing the agreement of sale since she had testified that there was power outage, she then said there was power backup. When she was asked to clarify what she had said, she then said Ms *Mahere* had misheard her, but she clearly stated that there was power backup. Somewhere along her testimony, she shifted goalposts and testified that electricity was restored while Shuwiso Bandika was at the house, but she could not print the receipt because there was a huge backlog.

[61] I pause momentarily to comment that the fact that Kundai Msemburi sent an email to the plaintiff and third defendant following up on the servicing of stands does not take the defendant's case any further because it does not prove that in this present case, the plaintiff authorised the third defendant to collect money from the first and second defendants. That email was irrelevant.

Tawira Madanire

[62] He testified that he and his wife bought stand number 1245 from the plaintiff in 2017. They paid the purchase price in three instalments into the third defendant's Barclays Bank account after which they executed the agreement of sale. He stated that when they did the first transaction, they spoke to the plaintiff on the phone, who gave them the go-ahead to deal with the third defendant, so they trusted that the instructions the third defendant was giving them were correct. They had been told by the third defendant that they would be issued a compliance certificate. Unfortunately, that process took long until they met the plaintiff at his pharmacy in Highfields, who told them that he was having problems with the third defendant and that they had deposited the money into the third defendant's account instead of the plaintiff's account. He later on called them to advise them that he had caused the third defendant's arrest, and he wanted their cooperation so that they could claim their stand, but they felt it was absurd to get involved in the plaintiff's and third defendant's personal lives.

[63] The witness testified that the plaintiff's lawyers had asked them to prove the payments they made towards the purchase of the stands, but unfortunately, at that time, the

plaintiff had already entered into an agreement of sale with Mr Mugiya for the same stand. They approached the courts for relief, and they were in and out of court. The plaintiff obtained a default judgment, and they appealed to the Supreme Court. The case was still ongoing.

[64] He testified that he only realised the discrepancy between the payment details they were given by the third defendant and the ones on the agreement of sale at the time of signing the agreement of sale.

[65] During cross-examination, he conceded that he was not a party to the current proceedings and that these proceedings had nothing to do with him. He conceded that he was fighting against a default judgment that was yet to be rescinded. He stated that he was not aware that the plaintiff had been acquitted. He stated that when they tried to make a police report, they were told that it was a civil matter. He admitted that he had not made any payment in terms of the agreement of sale.

[66] In my analysis, Tawira Madanire's evidence did not advance the defendant's case. His evidence revealed that in his case, he paid the full purchase price to the third defendant before signing the agreement of sale. In this matter, the deposit was paid the same day Shuwiso Bandika signed the agreement of sale and subsequent payments were made in instalments, after the agreement of sale had been signed. If anything, Tawira Madanire's testimony exposed that the third defendant gave them payment details which were contrary to the agreement of sale, and when the plaintiff got wind of that, he took the bold decision of having the third defendant arrested, but this witness did not want to get involved in what he perceived to be a family matter. In my view, the plaintiff's actions as narrated by this witness do not support the plaintiff's criminal enterprise but potentially point to the third defendant embarking on a frolic of her own.

Shadreck Munatsi

[67] He is the first defendant in this matter. His evidence can be summarised as follows: he and the second defendant, represented by Shuwiso Bandika, entered into an agreement of sale with the plaintiff for the sale of the stand. He saw the stands being advertised on social media, and he contacted the third defendant who confirmed the availability of the stands. He sent Shuwiso Bandika to view the stands with the intention of buying. He also viewed the stand through WhatsApp.

[68] It was his evidence that on the day Shuwiso Bandika went to pay the deposit, the plaintiff was not there, but he was told by Shuwiso Bandika, whom he was talking to over the phone, that he then arrived. Upon his arrival, Shuwiso Bandika was invited inside the house, and he was still on the phone. He started discussing about the stand with the plaintiff and the third defendant. The plaintiff, third defendant, and Shuwiso Bandika counted the money together, following which the agreement of sale was signed, and the plaintiff left with the money. Shuwiso Bandika remained behind with the third defendant. Shuwiso Bandika could not get a receipt because there was no power.

[69] When he was asked how he got the plaintiff's number, he said it was given to him by the third defendant. He stated that he had spoken to the plaintiff. His deposit was insufficient, and the plaintiff told him to speak to the third defendant. He testified that when Shuwiso Bandika went inside the house to make the payment, he was on a WhatsApp audio call with her. He instructed Shuwiso Bandika to make subsequent payments to the third defendant because the plaintiff had told him to do so.

[70] He testified that every time he wanted to make a payment, he would call the plaintiff who would tell him to go and make a payment to the third defendant. He stated that Shuwiso Bandika would get a receipt for every payment, as the plaintiff had advised at the point of signing the agreement of sale that they were supposed to get a receipt for every payment they made.

[71] When he was asked about the role he played on the day of signing the agreement of sale, he testified that he called the plaintiff around 10 am, whom he advised that the deposit was now ready. The plaintiff told him that he was not at home, but he would be in an hour. He instructed Shuwiso Bandika to go and collect the money, then proceed to the plaintiff's residence and wait for the plaintiff there. She duly complied. He testified that when the plaintiff arrived, the plaintiff, the third defendant, and Shuwiso Bandika went inside the house. He was talking to Shuwiso Bandika on the phone. He instructed her not to put the phone down so that he could hear what was going on. Shuwiso Bandika got into the house while the first defendant was on the phone, and the first defendant exchanged greetings with the plaintiff and the third defendant.

[72] The plaintiff explained to him that he was making a deposit payment that day, but he had to settle the balance on the set dates; failure of which he would cancel the agreement of sale. The parties agreed that the balance would be settled within thirty-six months. The plaintiff further explained that any time he wanted to make a payment, he should get a

receipt. He assured the plaintiff that he would stick to the terms of the agreement. Every time he got money to pay off part of the balance, he would call the plaintiff, who would tell him to tell his agent, Shuwiso Bandika, to bring the payment.

[73] He paid a total of US$50 785. After making the full payment, he called the plaintiff to advise him that he now intended to start construction. The plaintiff told him he would print the necessary documents for him to pay the endowment fees at the City of Harare. Through Shuwiso Bandika, he made the payments, which enabled him to obtain the necessary approvals from the City of Harare. He testified that they then commenced construction on the stand, and the house was now at deck level. He testified that neither him nor his agent received the 13 May 2018 letter. At the time he received the 25 January 2022 letter, the building was at window level. When he was asked why payments were made to the third defendant, he stated that the plaintiff had instructed him that they could make payments to the third defendant if he was not there, as long as they told him first, so he would call him and advise him that he was going to make a payment.

[74] During cross-examination, the first defendant insisted that the payments he made were made to the third defendant on the plaintiff's instructions upon advising him of his intention to pay. He confirmed that all the receipts showed that the payments were received by the third defendant and they were an accurate record of what had happened. He confirmed that the receipts were under Global Village. He testified that he did not insist on getting a receipt for the US$25 000 the very day the payment was made because he had been advised that there was a power cut.

[75] He confirmed that he was on a WhatsApp audio call which he made through Shuwiso Bandika. He stated that it was incorrect that the phone call was a private one between him and Shuwiso Bandika because everyone was on that call, and the plaintiff was passing instructions on what needed to be done. When he was told that Shuwiso Bandika had testified that the telephone call was a private call, he responded that he thought she might have gotten confused because of the manner in which Ms *Mahere* was asking her questions.

[76] He said it was not correct that it was only him and Shuwiso Bandika on the phone, although he could not see who was in the room on the phone. He said he was aware that the parties used a money counter to count the money, and he suggested that the money counter could have been battery-powered; but he was not sure. He testified that he was not aware that they used an electronic money counter, and he could not dispute the third

defendant's testimony that it was an electronic money counter. He stated that he was not aware that the third defendant had testified that she had printed the agreement of sale that day; all he knew was that the agreement was there when Shuwiso Bandika arrived.

[77] He stated that he was not in a hurry to get a receipt. He testified that he was not aware of the second defendant's discussion with Shuwiso Bandika to get a receipt immediately upon making payment because that was a discussion between a mum and her daughter. He could neither confirm nor deny the conversation with Wasu, but from his understanding, when they arrived, they had to wait for the plaintiff to arrive from work. He conceded that it was Shuwiso Bandika who was at the house and would be in a better position to testify who attended the meeting.

[78] The witness stated that he participated in the meeting over the phone. He was not aware of the number of people in the meeting. He only heard the plaintiff, the third defendant, and Shuwiso Bandika. He then heard a witness coming in to witness the agreement of sale. He was asked about his relationship to Shuwiso Bandika, to which he replied that she was his agent. When the question was pressed further, he stated she was his wife's relative, and his reference to her as his mum was on account of Shuwiso Bandika being his elder. His mother-in-law's name is Liniah Zwondayi and she stayed with them in the United Kingdom. I note in passing that the impression created by Shuwiso Bandika was that the second defendant was her biological daughter and the first defendant, her son-in-law, not some distant relative.

[79] The third defendant testified that he did not know Virimai Konjera. He disputed Shuwiso Bandika's testimony that the plaintiff was in another room and that he was purportedly handed the money by the third defendant, insisting that they were together in the same room. He stated that the money was handed to the third defendant, who in turn handed it to the plaintiff, who thanked him and left after telling him that moving forward, whenever they came to make payments, they were supposed to get a receipt.

[80] He testified that the agreement of sale was signed after the payment was made. His understanding of clause 1.1.1. of the agreement of sale was that payment would be made upon signing of the agreement of sale. He stated that he knew that the agreement of sale was signed after the payment of the deposit. He testified that he dealt with the plaintiff who told him to tell Shuwiso Bandika to go and pay the third defendant and get a receipt.

[81] He stated that the plaintiff would visit his construction site and talk to his builders, so he was aware of the building project. He conceded that the plaintiff sought and obtained an interdict against the construction, as a result of which they stopped building.

[82] He stated that he complied with what he discussed with the plaintiff verbally. He was the one who was guiding him. He conceded that what they discussed verbally was not what was in the agreement. He stated that the plaintiff was not telling the truth when he said that he never gave the first defendant any instructions contrary to what was in the agreement of sale. He was not aware that the plaintiff had been acquitted. He said he was dealing with the plaintiff who would give him instructions, which he would pass on to Shuwiso Bandika. He testified that he was not aware that the two witnesses had given different versions of the same event relating to the payment of the deposit.

[83] During cross-examination, there were moments the first defendant would become emotional. Several questions had to be repeated because he would either not give straightforward answers or he would answer his own questions. The court had to warn him to answer the questions he had been asked and both counsels had to tell him to calm down as he was giving his testimony. His emotions were understandable given that he parted with US$50 875, not to mention the costs of construction.

[84] The court notes that Shuwiso Bandika's testimony relating to the phone call was different from this witness' testimony. Shuwiso Bandika testified that she had a private call with the first defendant and the other parties did not participate, yet the first defendant said he had a phone call with Shuwiso Bandika, the plaintiff and the third defendant, with the plaintiff giving instructions on what needed to be done for a successful execution of the contract.

[85] The first defendant's testimony marked the end of the first and second defendants' case.

ISSUES FOR DETERMINATION

[86] Although five issues were referred for trial, the pertinent issues for determination can be distilled as follows:

1. Whether or not the first and second defendants paid the full purchase price of US$50 875 to the plaintiff in terms of the agreement of sale between the parties; and
2. Whether or not punitive costs are justified in the circumstances.

WHETHER OR NOT THE FIRST AND SECOND DEFENDANTS PAID THE FULL PURCHASE PRICE OF US$50 875 IN TERMS OF THE AGREEMENT OF SALE BETWEEN THE PARTIES

[87] It is a settled position of the law that courts ought to give effect to the contracts of the parties. Our courts have consistently upheld the salutary practice of upholding the freedom to contract lawfully. This notion, which has stood the test of time, is embodied in the principle of sanctity of contracts. A court will not excuse a party from the consequences of a contract simply because the other party finds the terms oppressive, as long as that party entered into the contract freely, voluntarily and with their eyes wide open: See *Magodora & Ors* v *Care International Zimbabwe* 2014 (1) ZLR 397 (S) at 403C-D.

[88] In *Ashanti Goldfields Zimbabwe* v *Mdala* SC-60-17 the court held at p. 4 that

> "The role of the court is to interpret the contracts and uphold the intentions of the parties when they entered into their agreements provided always that the agreement meets all the elements of a valid contract."

[89] In *casu*, it is common cause that clause 2 of the agreement of sale between the parties provides that:

> "All cash payments in terms of this agreement shall be paid directly to John Tranos Matukutire"

[90] Clause 13 of the agreement stipulates that:

> "This agreement is the whole contract between the parties and any other representations or stipulations not included herein shall be of no force and effect except where this is reduced to writing and signed by both parties."

[91] As to the effect of a stipulation in the mould of clause 2 in a contract, in *Matukutire* v *Makwasha & Ors* SC-92-21 the court observed at p.11 that: -

> "In *Mbayiwa v Chitakunye & Anor* SC 43/08 the following was stated at pp 6-8 of the judgment:
>
> > " In Anson's Law of Contract 26 ed at p 425 it is pointed out that:
> > 'Tender of payment to be a valid performance must observe exactly any special terms which the contract may contain as to time, place and mode of payment.'
>
> In Halsbury's Laws of England Vol 9 para 523 it is stated that:
>
> > A tender of performance which is not in accordance with the terms of the contract may be withdrawn and may not preclude the promissor from subsequently making within the time limited, a tender of performance in a proper manner; but this will not be the case where the incorrect tender is to be construed as a repudiation of the contract.
>
> R H Christie in *The Law of Contract in South Africa* 3 ed at p448 states that:
>
> > 'To be a valid tender it must comply with all the requirements of a valid performance, since the basis of the effect which the law gives to a valid tender of

> performance is that the debtor was correct in thinking that what he was attempting to achieve amounted to proper performance and that it was due to no fault of his own that he was unable to achieve it. Therefore, when performance is to be made at a specified time and place, a tender will not be valid unless it is made at that time and place.' ""

See also *Dengu & Anor* v *Eastern & Southern African Trade & Development Bank t/a PTA Bank & Ors* SC-2-24 at p. 24-25

[92] Thus, the position of the law is that for a tender of performance to be valid, it must conform to any special terms as contained in the contract.

[93] In determining whether or not a tender of performance is valid, the approach of the courts was pronounced in *Matukutire* v *Makwasha supra*, at p. 10-11 as follows:

> "R. H. Christie, in his book *The Law of Contract in South Africa*,[1] refers to performance effected in exactly the manner specified in the contract as being *in forma specifica* and that effected in some equivalent manner that is equally effective as being *per aequipollens*. Asserting that the distinction between the two is not always easy to make, the learned author offered, among others, the following guidelines (as per CLAASEN J in *Van Diggelen v De Bruin*)[2] for determining the issue –
>
> (i) if the circumstances (surrounding the case) afford no clue, then there is a presumption that the condition must be performed *in forma specifica* (*Wessels* para 1337; Pothier *Oblig*. 206). This presumption is rebuttable by the promissor, but it cannot be rebutted where it is clear from the terms of the contract and the surrounding circumstances that performance *in forma specifica* was stipulated in the contract (*Wessels* paras 2638-9) (my emphasis); and
>
> (ii) the act or performance tendered *per aequipollens*, where such is permissible, must in the first instance be an equivalent act to that mentioned in the contract or be of such a nature that it can make no material difference to the promissee."

[94] I turn to the facts of this case. In terms of clause 2 of the contract between the plaintiff and the first and second defendants, the first and second defendants were to make all cash payments directly to the plaintiff. From the receipts placed before the court, the first and second defendants made several payments which were recorded as received by the third defendant, Ratidzai Matukutire. These payments were recorded on 1 June 2018, 2 July 2018, 22 August 2018, 16 October 2018, 5 November 2018, 1 March 2019, 2 April 2019, 18 July 2019 and 2 December 2019. From Shuwiso Bandika's, the first defendant's and the third defendant's testimonies, the initial

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[1] 3 ed at p 456
[2] 1954 (1) SA 188 (SWA) 192-3

payment of USD$25 000 was made on 10 May 2018, although the receipt was later issued on 1 June 2018. I note from the record that there were duplications of receipts for 2 July 2018, 22 August 2018, 16 October 2018 and 1 March 2019. Minus those duplications, the receipts will show that a total of US$50 875 was paid in cash. The whole amount was towards the stand. I therefore have no doubt that the full amount was paid, and in cash.

[95] The plaintiff's argument was simply that the agreement entered into between the plaintiff and first and second defendants was clear. Any cash payments had to be done directly to the plaintiff. Performance, so it was argued, had to be strictly in terms of and in the manner specified in the agreement of sale, in *forma specifica*. Once payment was not tendered strictly in terms of the agreement, the plaintiff was and is entitled to cancel the agreement of sale. The first and second defendants, on the other hand, argued that they performed in terms of the contract in that the plaintiff personally received the deposit and subsequently, telephonically instructed payments to be made to the third defendant each time the first and second defendants intended to pay instalments towards their balance.

[96] I take cognisance of the fact that Ms *Mahere* extensively relied on the decision in *Matukutire* v *Makwasha & Ors supra* to advance the plaintiff's argument that the contract had to be performed in *forma specifica* and the fate of a failure to do so. In that matter, the appellant (plaintiff herein) entered into an agreement of sale for a piece of land in the same area as the first and second defendants in this matter for US$45 000. The agreement specified in its clause 2 that all payments to be made by the purchasers to the sellers shall be paid by the purchaser to the appellant in hard currency cash. The first and second respondents had paid some of the money to Ratidzai Matukutire, the third respondent, prior to signing the agreement of sale. The appellant had argued that the first and second respondents had, in blatant disregard of the bold and clear terms of clause 2 paid US$25 000 in hard cash to the third respondent who had not been authorised to receive payment on behalf of the appellant. The court noted that the first and second respondents' statement that they had paid the full purchase price in terms of the agreement of sale was not supported by the respondents' own averments with regards the payments they had made. The court also found that the first and second respondents did not perform in accordance with the terms of the contract they were seeking to enforce. The court further found that the tendered payments were not made in

terms of the contract between the parties. Finally, the court noted that a party seeking specific performance must itself have performed its part of the agreement or be willing to do so.

[97] Coming to this matter, the payments made can be divided into two distinct parts- firstly, the payment of the US$25 000 deposit on 10 May 2018 and secondly, the payment of the balance of US$25 875 in eight instalments.

[98] With regards the payment of the deposit, I remain alive to the diametrically different versions of the first and second defendants' evidence regarding the presence or otherwise of the plaintiff at the time the deposit was received by the third defendant. I am aware that the third defendant who was in the room together with the first defendant who was on the phone testified that the plaintiff was participating in the transaction. I am also alive to the fact that Shuwiso Bandika who was also in the room testified that she did not see the plaintiff personally on the day but she was told that the plaintiff was within the house.

[99] Given these divergent views, it becomes difficult to reconcile the two versions. Regrettably, Mr *Kutadzaushe* did not even make an attempt to have his witnesses reconcile the two parallel versions. He chose to pay a blind eye to the different versions, and it was only upon cross examination that the witnesses were asked about the different versions, with the result that the witnesses simply barely denied Shuwiso Bandika's testimony. In my view, this was an abrogation on Mr *Kutadzaushe*'s part. Under the circumstances, on the evidence of the first and second defendants' witnesses, it cannot be said with precision that the plaintiff was seated on the table where the money was being counted.

[100] That said, that is not the end of the matter. The first and second defendants argued that the third defendant acted as the plaintiff's agent. The first and second defendants further argued that every time they wanted to make an instalment payment, they would call the plaintiff who would instruct them to pay the money to the third defendant who would be home at that time. The first and second defendants therefore argued that the method of payment they rely on was authorised by the plaintiff. In my view, the underlying facts and circumstances in the *Matukutire* v *Makwasha & Ors supra* case would therefore be distinguishable from the facts in the present matter.

[101] On the authority of the decision of the court in *Matukutire* v *Makwasha & Ors supra*, and given the evidence that had been adduced before this court, I form the view that this is an appropriate case to interrogate the question of whether or not the fulfilment of

conditions in this matter was supposed to be in *forma specifica* or *per aequipollens* according to the intention of the parties as evidenced by the surrounding circumstances.

[102] In this matter, the plaintiff argued that on 13 May 2018 he issued a notice to the first and second defendants calling upon them to remedy their breach. That letter was not placed before this court so the court does not have the benefit of the contents of the said notice. Assuming that the notice was indeed issued, it came hard on the heels of the signing of the agreement of sale on 10 May 2018 and it must have related to the payment of the deposit in terms of the agreement. It was the plaintiff's argument that this letter was not responded to while it was the first and second defendants' position that they did not receive this letter.

[103] What I find striking is that after purportedly issuing that notice on 13 May 2018 and the first and second defendant did not budge; the plaintiff was not bothered to follow through the cancellation, and therefore the agreement remain open and unfulfilled, until some three and half years later when he claims he finally noticed that there was some construction going on at the stand.

[104] In the circumstances, I do not believe the plaintiff's argument that he did not notice the breach until after a long time because there were 43 stands in the offing, because his 13 May 2018 letter speaks otherwise. The plaintiff noticed the breach barely three days later and he took steps to have that breach rectified so it cannot be true that it only took him three and half years to notice the breach. In my view, the plaintiff cannot now seek to hide behind the number of stands he was selling to explain away the reason why it took him that long to notice the breach.

[105] I find it equally strange that for three and a half years, the plaintiff could not see developments which were happening within an 800m radius of his place of residence, especially considering that this was his piece of land which he was selling off. Of course, clause 12 of the agreement provides that the rights of either party shall not in any way be prejudiced by an extension of time or by other indulgence or concession which one party may grant to the other in respect of the performance of that party's obligations under the agreement, but, the point remains that it cannot be true, from the circumstances of this case, that for three and a half years the plaintiff was not aware of what was happening around him.

[106] In his 25 January 2022 notice, the plaintiff adverted to the non-payment of the full purchase price by the first and second defendants. Peculiarly, his own notice ignores the

fact that the deposit should have been paid upon the signing of the agreement in terms of clause 1.1.1 of the agreement of sale. Further, his own notice ignores that the first and second defendants had not paid the instalments within thirty-six months from 1 August 2018 until the balance was fully paid up in terms of clause 1.1.2. of the agreement of sale. Going by the agreement of sale, at the time the notice was issued, the first and second defendants should have paid the by 31 July 2021. The plaintiff was quiet until almost half a year later when it finally dawned on him that the first and second defendants had not only failed to pay the deposit, but they had also failed to pay the instalments.

[107] A portion of the third paragraph of the 25 January 2022 letter says:

> 'Please take note that the full purchase price must be paid to me (John Tranos Matukutire) in terms of clause 2 of the agreement of sale and must be paid as hard currency'

[108] In my view, the wording of this sentence is telling. It is not just a simple reminder of the method of payment but rather, an attempt by the plaintiff to remove himself from the nine payments that had been done through his wife, the third defendant. The plaintiff was simply making a point that the payments the first and second defendants had made were not in terms of the agreement. Coming against the backdrop of the judgment in *Matukutire* v *Makwasha & Ors supra*, the plaintiff was 'enlightened' as to how the law works and he wanted to ensure that he made the point that the contract was not performed in terms of the agreement.

[109] However, it was not an open and shut case like that because in this matter, it was the testimony of Shuwiso Bandika and the first defendant that whenever they intended to make a payment, they would call the plaintiff who would give them payment instructions. I am cognisant of the fact that during the trial, questions were asked as to how Shuwiso Bandika and the first defendant obtained the plaintiff's number. The first defendant testified that he got it from the third defendant while Shuwiso Bandika initially stated that she got it from the third defendant then she stated that she got it from the first and second defendants. I also note that the agreement of sale captures a contact number under the plaintiff's details. I have not been given any reason to doubt that the first defendant and Shuwiso Bandika obtained the plaintiff's numbers.

[110] Shuwiso Bandika may not have been a satisfactory witness in all respects, but I have not been given any reason to conclude that the respective witnesses' testimonies on contacting the plaintiff was a result of a joint fabrication by the witnesses. In relation to this specific aspect, there were striking coincidences in the evidence of the first defendant

and Shuwiso Bandika. I believe both witnesses' versions coincided because it was the product of their own experiences. In any event, not every inconsistency affects the credibility of a witness: See *S* v *Munyuki* HMT 7-20 at p3. I therefore conclude that both Shuwiso Bandika's and the first defendant's accounts of how they dealt with the plaintiff in paying the instalments are worthy of belief.

[111] On a balanced overall assessment of the probabilities, I find that there is material corroboration on the evidence of the plaintiff being alerted of any impending payment and giving instructions on how that payment was supposed to be made. Further, the first defendant, though emotional, did not strike me as an untruthful witness whose evidence cannot be relied on. In the circumstances, I find it more probable than not that the first defendant and Shuwiso Bandika would call the plaintiff everytime they wanted to make an instalment payment and they were authorised by the plaintiff to go and see the third defendant and make the necessary payments, accompanied by a strong exhortation to obtain a receipt for each payment, which they did.

[112] The plaintiff's argument was that legitimate receipts were issued under Lomagundi Pharmacy. These receipts were not tendered as exhibits and they therefore cannot be relied on as evidence before the court simply because they are contained in the plaintiff's bundle of documents: *Tel-One (Pvt) Ltd* v *Capitol Insurance Brokers (Pvt) Ltd* SC-60-18. There is no evidence placed on record to prove that indeed, the Global Village receipts issued by the third defendant were not genuine. In any event, I find it difficult to believe the plaintiff in this regard considering that initially, he totally denied knowledge of the Global Village outfit, only for him to reveal that it was a marketing strategy not a commercial transacting entity upon being cross-examined. Even at this point, he tried to create an impression that it was the third defendant's own creation but his email to Dominic shows that he was very much aware of this project. The plaintiff read into the record paragraph 7 of his email to Dominic which was to the effect that:

> "Our global village project is run on professional lines to avoid improper claims, duplication of work, incorrect pricing, double offers of one property, therefore only agents with signed mandates can offer our land"

[113] This statement speaks to a joint project, not a solo project as the plaintiff wanted the court to believe. It speaks to that project being run on professional lines and the reason for doing so. Only late in the day did the plaintiff now want the court to believe that he was not aware of this project, and that the receipts it issued, in its 'professional' operations were fake. In my view, there is an overwhelming probability in favour of the first and

second defendants that the plaintiff was aware of the Global Village project, it was a joint project run by him and the third defendant and everything that was done under the project had his blessings, including the issuance of the receipts issued to the first and second defendants as and when they paid for the stand.

[114] For the foregoing reasons, and having regard to the circumstances of this case, I am not satisfied that the facts of the *Matukutire v Makwasha & Ors supra* matter and the application of the in *forma specifica* principle to it is sufficiently analogous to the matter in *casu*. In my view, the surrounding circumstances of this matter give a sufficient clue as to the intention of the parties. I take the view that the parties contemplated that payment of cash to the third defendant, on the instructions of the plaintiff, had the effect of fulfilment of clause 2 of the agreement *per aequipollens*. In my further view, the receipt of the money by the third defendant did not make any material difference to the plaintiff. It was a payment effected in an equivalent and equally effective manner. The fact that the third defendant then used the money she received on behalf of the plaintiff to beautify their matrimonial home should not, in my view, be the first and second defendants' problem and should not be weaponised by the plaintiff to now argue that the contract was supposed to be in *forma specifica*, in circumstances where he gave instructions for the money to be given to the third defendant while he was at work in Chinhoyi.

[115] This brings me back to the payment of the deposit. If the plaintiff was being called and he accepted the instalments through the third defendant, I find that despite the fact that there were divergent testimonies on how he participated in the deposit paying transaction, the payment of the deposit cannot be a phantom. The third defendant acknowledged receipt of the deposit. A receipt was issued confirming payment of the deposit. The probabilities of this matter are that the deposit was paid to the third defendant on the authority of the plaintiff. The subsequent authorities from the plaintiff for the third defendant to receive the payments point prove, on a balance of probabilities, that the plaintiff received the deposit hence his continued participation in the subsequent transactions.

[116] In all of the circumstances of this matter, I have no hesitation in finding that on a balance of probabilities, the first and second defendants paid the full purchase price of US$50 875 to the plaintiff towards the purchase of the stand in terms of the agreement of sale between the parties. The plaintiff is therefore not entitled to cancel the agreement of sale and to the remedy he seeks.

[117] It also follows that if the first and second defendant paid the full purchase price, transfer of title with regards the stand should be made in their favour. At this juncture, I turn to deal with the fact that the first and second defendants did not comply with clause 18 of the agreement of sale. The said clause provides that:

> "(a) The Purchaser shall pay the cost of drafting, typing and execution of this agreement in the sum of US$200.00 directly to NKOMO AND MHISHI LEGAL PRACTICE.
> (b) The Purchaser shall pay the costs of transfer determined by NKOMO AND MHISHI LEGAL PRACTICE at the time of conveyance.
> (c) The Purchase shall be liable to pay for the costs of Zesa installation in the sum of US$1500.00"

[118] The authorities coming out of this jurisdiction, including the case of *Grandwell Holdings (Pvt) Ltd* v *Zimbabwe Mining Development Corporation & Ors* 2020 (1) ZLR 108 (S), hold that the remedy of specific performance is aimed at upholding the contract and obtaining the performance of the terms of the contract as agreed. Specific performance is the primary or default remedy for breach of contract.

[119] In his text, *The Law of Contract in Zimbabwe*, 1st Ed (2015) Innocent Maja posits that:

> '*Prima facie*, every party to a binding agreement who is ready to carry out his own obligation under it has a right to demand from the other party, so far as it is possible, a performance of his undertaking in terms of the contract. As remarked by KOTZE CJ in *Thompson v Pullinger* the right of the plaintiff to the specific performance of a contract where the defendant is in a position to do so is beyond all doubt.'

[120] In *Grandwell Holdings supra*, MATHONSI JA is quick to caution that:

> 'However, the right to claim specific performance is predicated on the concept that the party claiming it must first show that he or she has performed all his or her obligations under the contract or is ready, willing and able to perform his or her side of the bargain. Even then, the court has a discretion, which should be exercised judicially, to grant or refuse a decree of specific performance. It follows therefore that the court's discretion should not be exercised arbitrarily or capriciously. See *Minister of Public Construction & National Housing* v *Zescon (Pvt) Ltd* 1989 (2) ZLR 311 (S), where at 318 G, this Court stated:
>
> "The law is clear. This is a remedy to which a party is entitled as of right. It cannot be withheld arbitrarily or capriciously."

[121] *Manengureni* v *Kakomo & Ors* 2020 (2) ZLR 269 (H) at p275F-G DUBE J (as she then was) remarks that

> '[24] Specific performance is an order of court requiring that a contract be performed on the basis of its terms. It is a remedy ordinarily afforded to an innocent party in the event of breach by the other party resulting from his failure to adhere to terms of a contract. Generally, the

remedy of specific performance is available to the innocent party. Wessels, *The Law of Contract in South Africa* vol 1 para 3135 states:

> "The court will not decree specific performance where the plaintiff has broken the contract or made a material default in the performance on his part (Lawson, s 472, p522). A party is not entitled to a specific performance where he has failed to show that he has performed in terms of the contract. See also *Wilbert* v *Steenkemp* 1917 AD 493@ p499."

An order for specific performance enables the innocent party to compel performance of the terms of the contract upon breach. There must be a binding contract in existence and a breach of the terms of the contract. Courts will not order specific performance where there is substantial and material breach of the contract by the party seeking enforcement of the contract.'

[122] In my view, the first and second defendants, by not paying US$200 for the drafting, typing and execution of the agreement cannot be said to have substantially and materially breached the contract. Further, the requirement in clause 18 (b) has not arisen so there can be no breach to talk about. Similarly, the requirement in clause 18 (c) is not time bound, therefore it cannot be successfully argued that there is a material or a substantial breach in that regard. The first and second defendants can still perform their obligations in terms of clause 18.

[123] Finally, I turn to address the other issues flowing from the matter. With regards the issue of whether or not the plaintiff has engaged in fraudulent and criminal enterprise with the aim of prejudicing the first and second defendants of the money they paid towards purchase of the property in question, I find that the first and second defendants did not lead any meaningful evidence to prove this issue, in fact, it was Ms *Mahere* who made the effort to disprove this issue. My comments on Tawira Madanire's evidence are also apposite. I therefore find that there is no evidence to support a positive finding in this regard.

WHETHER OR NOT PUNITIVE COSTS ARE JUSTIFIED IN THE CIRCUMSTANCES

[124] The jurisprudence in this jurisdiction is that the courts will not lightly accede to a prayer for an award for costs on a legal practitioner and client scale. See *Kangai* v *Netone Cellular (Pvt) Ltd* 2020 (1) ZLR 660 (H). It is only in exceptional circumstances where, for example, the unsuccessful party's conduct has been completely unreasonable and reprehensible that a court may depart from the general position that costs are

awarded on the ordinary scale: *Borrowdale Country Club* v *Murand*u 1987 (2) ZLR 77 (H); *Chioza* v *Sawyer* 1997 (2) ZLR 178 (S); *Communications & Allied Industries Pension Fund* v *Netone Cellular (Pvt) Ltd* HH 86-23.

[125] There are several factors and principles that have been laid down by the courts in exercising the discretion to award punitive costs. These include: (1) dishonest conduct either in the transaction giving rise to the proceedings or in the proceedings; 2) malicious conduct: (3) vexatious proceedings; (4) reckless proceedings and (5) frivolous proceedings. See *Zimbabwe Online (Pvt) Ltd* v *Telecontract (Pvt) Ltd* HH–206–12, *ZETDC* v *City of Masvingo* HH–359–23. In exercising its discretion, the court is guided by the principle of fairness to both parties.

[126] From the evidence on record, the plaintiff received the full purchase price from the first and second defendants. With that full knowledge, he made a conscious decision to drag the first and second defendants to court because his now estranged wife used the money to beautify their house. In my view, the plaintiff's conduct was dishonest, inconsiderate and manifestly inappropriate. For these reasons, I am of the view that this is an appropriate case for the plaintiff to mulcted with costs on a punitive scale.

ORDER

[127] In the result, the following order is made:

[128] In respect of the main claim-

1. The plaintiff's claim be and is hereby dismissed.
2. The plaintiff is ordered not to interfere with the first and second defendants' occupation of stand number 1239 Good Hope Township of Lot 16 of Good Hope, measuring 2035 square metres.
3. Subject to the first and second defendants' paying the costs stipulated in clause 18 of the agreement of sale, the plaintiff shall sign all the necessary documents to effect transfer of stand number 1239 Good Hope Township of Lot 16 of Good Hope, measuring 2035 square metres into the first and second defendants' names and pay all statutory taxes required from the plaintiff is his capacity as seller.
4. In the event that the plaintiff does not sign the necessary documents for the transfer of stand number 239 Good Hope Township of Lot 16 of

Good Hope, measuring 2035 square metres into the first and second defendants' names within seven days of them complying with the requirements in clause 18 of the agreement of sale, the Sheriff of Zimbabwe or his deputy be and is hereby authorised to do so and to enable transfer of the said property into the first and second defendants' names.

5. The plaintiff shall pay the first and second defendants' costs of suit on a legal practitioner and client scale.

MUSHURE J: .....

Mugiya Law Chambers, plaintiff's legal practitioners
Mangwana & Partners, first and second defendants' legal practitioners